

24TRCV03297 24TRCV03297

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CB%2C07%2F30%2F2026

Source SHA-256: 88548139a39b87e13e19d056d65ed9fbe25c6ab5b0df42b5dc4f0c830a08a8fe

Case Number: 24TRCV03297 Hearing Date: July 30, 2026 Dept: B

Moving Parties: Defendant Clorinda Lanuza

Responding

Party: None

(1)

Motion to Compel Answers to Form

Interrogatories

(2)

Motion to Compel Answers to Special

Interrogatories

(3)

Motion to Compel Answers to Requests

for Production

The Court considered the moving papers. No opposition was filed.

RULING

The motions

are GRANTED as to form interrogatories and special interrogatories and DENIED

WITHOUT PREJUDICE as to request for production of documents.

Plaintiff

Rabi Mouton is ordered to respond without objections to defendant Clorinda

Lanuza's Form Interrogatories, Set One and Special Interrogatories, Set One,

within twenty days.

The

Court orders that plaintiff pay sanctions to defendant in the amount of \$490, in total for the two granted motions, within thirty days.

BACKGROUND

On October

2, 2024, plaintiff Rabi Mouton filed a complaint against Clorinda Lanuza for motor vehicle negligence and general negligence based on an incident that occurred on November 8, 2022.

On

April 28, 2025, the case was deemed related to 24TRCV03717.

LEGAL

AUTHORITY

Interrogatories

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. CCP §2030.290(b). The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. *Leach v. Superior Court* (1980) 111 Cal. App. 3d 902, 905-906.

Request

for Production of Documents

Where

there has been no timely response to a CCP §2031.010 demand, the demanding party must seek an order compelling a response.

CCP §2031.300. Failure to timely

respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline

for a motion to compel responses.

Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required. Weil & Brown, Civil Procedure Before Trial, 8:1487.

DISCUSSION

Defendant Clorinda Lanuza requests that the Court compel plaintiff Rabi Mouton to respond to defendant's initial form interrogatories, special interrogatories, and request for production of documents.

Defendant asserts that on December 17, 2025, she served written discovery on plaintiff. Having received no verified answers, defense counsel sent correspondence to plaintiff's counsel on February 2, February 23, April 6, and May 6, 2026, as to the outstanding responses. As of the filing date of the motions, defense counsel had not received responses.

The

Court finds that as to defendant's form interrogatories, set one and special interrogatories, set one, defendant properly served discovery requests and plaintiff failed to timely serve responses.

As there are no attachments to the motion to compel responses to request for production of documents, the Court cannot determine whether the request was properly served.

The motions are GRANTED as to form interrogatories and special interrogatories and DENIED WITHOUT PREJUDICE as to request for production of documents.

Sanctions

Under CCP § 2023.030(a), "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. . . . If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Under CCP § 2023.010, an example of the

misuse of the discovery process is "(d) Failing to respond or to submit to an authorized method of discovery."

Sanctions

are mandatory in connection with motions to compel responses to interrogatories and requests for production of documents against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the court "finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." CCP §§ 2030.290(c), 2031.300(c).

Cal. Rules of Court, Rule 3.1348(a) states: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed."

Defendant requests sanctions against plaintiff in the amount of \$585 (\$185/hr. x 1 hr. prep, 2 hrs. hearing/travel, \$60 filing fee) for each motion. The Court finds that \$490 (\$185/hr. x 2 hrs., \$120 in filing fees) is a reasonable amount to be imposed against plaintiff in total for the two motions that are granted.

ORDER

The motions are GRANTED as to form interrogatories and special interrogatories and DENIED WITHOUT PREJUDICE as to request for production of documents.

Plaintiff

Rabi Mouton is ordered to respond without objections to defendant Clorinda Lanuza's Form Interrogatories, Set One and Special Interrogatories, Set One, within twenty days.

The

Court orders that plaintiff pay sanctions to defendant in the amount of \$490, in total for the two granted motions, within thirty days.

Defendant

is ordered to give notice of ruling.